

HOUSE No. 2704

The Commonwealth of Massachusetts

PRESENTED BY:

Priscila S. Sousa

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the postpartum treatment of women in correctional facilities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Priscila S. Sousa</i>	<i>6th Middlesex</i>	<i>1/13/2025</i>
<i>Mindy Domb</i>	<i>3rd Hampshire</i>	<i>1/22/2025</i>
<i>Christine P. Barber</i>	<i>34th Middlesex</i>	<i>3/7/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>6/25/2025</i>

HOUSE No. 2704

By Representative Sousa of Framingham, a petition (accompanied by bill, House, No. 2704) of Priscila S. Sousa, Mindy Domb and Christine P. Barber relative to the postpartum treatment of women in correctional facilities. Public Safety and Homeland Security.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2404 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the postpartum treatment of women in correctional facilities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 118 of said chapter 127, as so appearing, is hereby amended by changing the first
2 sentence of the eighth paragraph to the following:-

3 “During post-delivery recuperation, an inmate shall remain in the hospital until the
4 attending physician certifies that she may be safely discharged and transferred back to the
5 correctional facility, as well as until the pediatrician caring for the infant has deemed the infant
6 has had sufficient time in the biological mother’s presence to reasonably ensure the health of the
7 infant up to, but not exceeding 72 hours.”